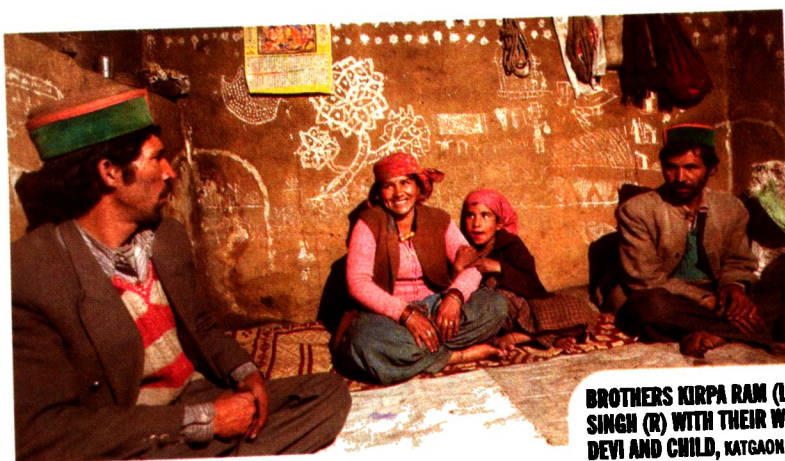




cent of marriages nowadays are polyandrous," says Chandermani Negi, the cell-phone flaunting woman activist and chairperson, Zila Parishad, Kinnaur, who had three fathers-in-law. "Modernisation has ushered individualism into our tribal society and weakened its conservative cultural moorings." While the female literacy rate in Kinnaur has almost doubled since the 1991 census figure of 42 per cent, a more defining change has been in terms of prosperity levels, largely due

deity. There have been cases where Kinnauri men, who had polyandrous marriage before they got selected for the elite civil services like IAS and IPS, snapped conjugal ties with the common wife and got re-married to suit their new-found status. Even more complicated is the legal wrangling over inheritance of moveable and immovable property among the male progeny of common marriages. "As the names of the fathers of legal heirs in common marriages recorded in revenue records



BROTHERS KIRPA RAM (L) AND AMAR SINGH (R) WITH THEIR WIFE SUNITA DEVI AND CHILD, KATGAON, BADHA VALLEY IN KINNAUR DISTRICT

Sunita was 17 years old when she was taken away by Kirpa Ram from a fair in Kamru village in 1990. Later, she tied the nuptial knot with both the brothers.



BROTHERS RATTAN SINGH (L) AND JOGDAYAL WITH THEIR WIFE SUMRITI DEVI AND CHILDREN, VILLAGE KAFNU, BADHA VALLEY IN KINNAUR DISTRICT

While Rattan, a graduate, has taken upon himself the responsibility of their four common children's education, Jogdayal looks after the family orchard.

to an apple-powered economy pegged at Rs 100 crore a year. Apart from flourishing tourism, the area has also reaped the benefits of the Scheduled Tribe status, sending a substantial number of its educated youth to the Central and state services. No wonder Kinnaur, with a population of 78,000, now has the highest per capita income among the 12 districts of the state.

The new socio-economic reality has also exposed the perils of polyandry which is now leading to family discords and legal disputes also over inheritance. The genesis of such cases lies in the breakdown of common marriage when a spouse, who prospers or gets educated and a job outside Kinnaur, walks out of a polyandrous relationship and remarries, disowning the common wife as well as the offspring. In such cases, the deserted woman has little option but to approach the village

are at variance with the ones mentioned in panchayat records, legal conundrums occur on their paternity," says P.S. Dulta, tehsildar at Sangla.

In the last five years, more than 600 cases questioning the paternity of the offspring of common marriages have appeared in local courts. And, their number is on the rise, according to local revenue officials. There is a growing demand that the government clearly define and document common marriages to preserve the sanctity of the tribal custom. Clearly, with the economic changes sweeping the tribal region of Himachal, the conflict between tribal laws and constitutional law is becoming more glaring than ever before and could well sound the death knell for polyandry which has little relevance or legality in today's reality. ■